

and may result in inconsistent outcomes. Defendants will not be subject to loss of evidence, added preparation costs, or discovery that otherwise would not have been undertaken if amendment is permitted.

The Motion for Leave to File a First Amended Complaint is **GRANTED**. The proposed First Amended Complaint is attached as an exhibit to the moving papers. As the clerk may not alter a filed document, Plaintiffs are required to file the First Amended Complaint within ten days of today's hearing. Plaintiffs are reminded of the requirement to file a Proof of Service of Summons within thirty days after the filing of the amended complaint per CRC 3.110(b). The current trial date of May 6, 2025 is **VACATED**. This matter is set for review regarding trial resetting on **Monday, July 7, 2025, at 9:00 a.m. in Department 64.**

CREDITORS ADJUSTMENT BUREAU, INC. VS. STRIKE FIRST SNIPERS LLC, ET AL.

Case Number: 22CVG-01048

Tentative Ruling on Application for Judgment Debtor Examination: Petitioner Creditors Adjustment Bureau, Inc. seeks an Order for Appearance and Examination of Kelli Hayward, President of Strike First Enterprises, LLC. Code of Civil Procedure section 708.110 requires personal service to be made on the judgment debtor at least thirty calendar days prior to the examination. A Proof of Personal Service was filed on February 18, 2025, indicating that the judgment debtor was served on January 15, 2024. This is obviously a typo, as the Order for Appearance didn't issue until December 12, 2024, and the process server executed the Proof of Service on January 20, 2025. Petitioner is ordered to appear and confirm the date indicated at Item 2 is a typo and confirm that service was effected on January 15, 2025. The Court also notes that at Item 2, the box is checked indicating that there is an attachment POS-020(D). However, there is no attachment. Nonetheless, the Proof of Service indicates that the required documents were timely personally served. An amended proof of service must be filed, correcting the defects, and this must be filed within five court days of today's hearing. The debtor examination shall proceed today.

DOBBINS, ET AL. VS. CARE OPTIONS MANAGEMENT PLANS AND SUPPORT

Case Number: CVCV20-0194615

Tentative Ruling on Motion for Preliminary Approval of Class Action and PAGA Settlement: This is a wage and hour class action. Plaintiffs seek preliminary approval of a class action and PAGA settlement. The operative complaint is the Third Amended Complaint filed August 2, 2023. Plaintiffs are Marilyn Dobbins, Allyssa Gall, and Hannah Polk, each individually and on behalf of all others similarly situated. Attorneys Kane Moon, H. Scott Leviant, and Mariam Ghazaryan of Moon Law Group, P.C. represent both Marilyn Dobbins and Allyssa Gall. Kearney Littlefield LLP and Littlefield Law represent Plaintiff Hannah Polk.

The Motion for Preliminary Approval of Class Action Settlement, filed January 22, 2025, is made by Plaintiffs Marilyn Dobbins and Hannah Polk. In a footnote on page 1 of the Motion, Plaintiffs state "Plaintiff Alyssa Gall, aka Alice Parker-Combs, signed the MOU setting forth the primary terms of this Settlement but did not sign the Agreement and is not participating in this Motion as a moving party. All references to Plaintiffs herein refer to Marilyn Dobbins and Hannah Polk unless otherwise specified." (Mot. p. 1 fn. 1.) Alyssa Gall did not sign the Settlement Agreement. (Declaration of Leviant, Ex. 1.)

This matter first came on for hearing on February 24, 2025. The Court declined to rule on the merits at that time, expressing concern that Ms. Gall had not signed the settlement agreement and was not participating in the motion as a moving party. The Court requested supplemental briefing and supporting evidence. Plaintiffs filed a Supplemental Brief and Supplemental Declaration of H. Scott Leviant on February 25, 2025.

Moon Law Group, PC acknowledges it is counsel of record for Plaintiff Allyssa Gall. Yet, counsel seeks to settle this lawsuit without the agreement of its client, a named Plaintiff. Counsel's supplemental briefing cites to authority which provides that if a trial court concludes that a plaintiff cannot suitably represent a class, the trial court should permit discovery and/or amendment of pleadings to add suitable representatives for the class. *Best Buy Stores, LP v. Superior Ct.* (2006) 137 Cal. App. 4th 772. That is not the situation here. Here, we have a named Plaintiff, represented by putative class counsel, who has not agreed to settle this case. Plaintiffs submit a Memorandum of Understanding Plaintiff Gall signed on August 9, 2024, and assert that this is sufficient to bind Ms. Gall to a Settlement Agreement she did not sign. It is contradictory to assert that Ms. Gall is both bound by the MOU, and also not participating in the Motion for Preliminary Approval despite being a named Plaintiff. The terms of the MOU provide that "The Settlement described in this Memorandum of Understanding is subject to court approval and shall be based on the terms and conditions set forth below." It also provides that "Until such time that the stipulated settlement agreement is executed by the Parties, this executed MOU shall be treated as an enforceable settlement agreement pursuant to California Code of Civil Procedure § 664.6." (MOU ¶ 17.) Here, all parties except Ms. Gall have since executed a stipulated settlement agreement. Plaintiffs are not seeking enforcement of the MOU pursuant to CCP § 664.6.

Counsel's Supplemental Declaration indicates that Ms. Gall refused to sign an earlier draft of the MOU because of the general release provision, but later agreed to revised terms. (Decl. Leviant ¶¶ 6-7.) Additionally, the Declaration indicates that counsel has not had any communication with their client Ms. Gall since December 4, 2024. (Decl. Leviant ¶¶ 9-10.) The instant Motion was filed January 22, 2024. The Court is concerned that Ms. Gall has not been informed that her attorneys are seeking preliminary approval of the settlement without her participation.

The Court cannot address the merits of the Motion until this issue is resolved. The Motion for Preliminary Approval is **DENIED** without prejudice.

JONES VS. COUNTY OF SHASTA, ET AL.

Case Number: 22CV-0199596

Tentative Ruling on Motion for Summary Judgement, or in the Alternative Summary Adjudication: This is an action alleging negligence/wrongful death, and negligent supervision, arising out of the death of Cody Jones (Decedent) while in custody of the Shasta County Jail. Plaintiff is Decedent's mother, Janet Jones. Plaintiff alleges that on April 14, 2021, Decedent was remanded to the custody of Shasta County Jail after a preliminary hearing at the Shasta County Superior Court. He was placed into a safety jail cell because he was believed to be suicidal. Decedent hung himself within an hour of being booked. Defendant County of Shasta (County) moves for summary judgment on the grounds that the County cannot be liable to Plaintiff under Government Code section 844.6. Plaintiff opposes the Motion.